

Sarthak Tiwari v. Uttar Pradesh Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 April 2023 · Writ-C No. 11336 of 2023 · **Dismissed as withdrawn with liberty to invoke Clause 6.5.**

HEADNOTE

Writ against a disputed electricity bill dismissed as withdrawn, with liberty to raise objections before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sarthak Tiwari filed Writ-C No. 11336 of 2023 before the High Court at Allahabad against Uttar Pradesh Power Corporation Limited and three others over a disputed electricity bill. At the outset, counsel for the Corporation submitted that the petitioner could raise his objections to that bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The order records no bill amount, connection particulars, or the nature of the objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed electricity bill — clause 6.5 remedy

HOLDING

On the Power Corporation's submission that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the remedy for objections to a disputed electricity bill, the writ was dismissed as withdrawn, with liberty to the petitioner to take that remedy before the competent authority. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Counsel for the licensee pointed to Clause 6.5 as the forum for objections to the disputed bill, and the writ was dismissed as withdrawn with liberty to approach the competent authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL

No finding on liability or the bill; liberty reserved to approach the competent authority under Clause 6.5. ¶ 1